**Employment Agreement**

29/03/2025

# Oleksandr Ivanyushkin

# Mobile 0460858543

# 93ivas@gmail.com

Dear Oleksandr,

This letter sets out the terms of your employment with the company.

In this letter, words in bold type have the meaning described in the definitions section at the end of the letter.

## 1 EMPLOYMENT

### 1.1 Commencing position

**Phoenix Food and Beverage Pty LTD** will commence employing you in the position of a Pizza Chef on a full-time Salary basis, Starting on 31 April 2025.

### 1.2 Acknowledgment

Employee acknowledges and agrees that:

(a) Employee possesses the lawful right to work in Australia and undertake the duties and responsibilities outlined in this letter of employment.
(b) Employee shall promptly notify the company of any circumstances that may jeopardize this right during employment.
(c) Employee shall provide sufficient evidence, upon company's request, to verify the right at any given time.

### 1.3 Hours

Except in cases of absence due to illness, incapacity, accident, or approved leave, Employee shall devote their full time, attention, and abilities exclusively to the business of the company during regular business hours and any additional reasonable and necessary hours required for satisfactory job performance.

If Employee considers the assigned working hours to be unreasonable or if the nature of their job requires them to work hours that they deem unreasonable, they shall first raise the matter with their manager. The average weekly working hours are estimated to be approximately 45, scheduled between Monday and Friday.

### 1.4 Location

Initially, you will work at the company's premises at Phoenix Food and Beverage Pty LTD. However, the company may direct you to perform work at other locations, provided that such a direction does not impose unreasonable hardship on you.

**1.5 Probationary employment**

6 months

**1.6 Permanent employment**

If your employment continues after the expiration of the probationary period, it will be ongoing, subject to the right of either the company or you to terminate your employment under clause 10.

**1.7 Duties and responsibilities**

You will:

(a) Exercise the powers and discretions, hold the responsibilities and perform the duties and tasks as are conferred, delegated or specified by the company from time to time;

(b) Perform those responsibilities and duties honestly and in a proper and efficient manner;

(c) Use your best endeavors to promote and enhance the interests, welfare, business, profitability, growth and reputation of the company;

(d) Not intentionally do anything that is or may be harmful to the company;

(e) report to the company promptly, or to such person as the company from time to time determines, at all reasonable times, all information and explanations as required in connection with matters relating to your employment or the business of the company; and

(f) comply with all lawful and reasonable directions given to you by the company.

**1.8 Company policies**

(a) You must be familiar with and observe the **company's policies** as varied from time to time.

(b) Nothing in the company's policies gives rise to a legal right or benefit enforceable by you.

**1.9 Inconsistency with industrial laws**

If the company is subject to obligations in respect of your employment arising under any **industrial laws** and any such obligation is inconsistent with a term of this letter, the term of this letter will not operate to the extent of that inconsistency.

# 2 REMUNERATION

## 2.1 Amount

The company will pay you an annual remuneration package that comprises:

(a) Base salary of $ 57000 Level4 Grade3 Restaurant Award + $15000 extra benefits to be = $72000 per annum

(b) Plus each working day $20 non-cashable allowance for 1 meal from counter + 1 drink + Coffee approx. $ 5k per annum.

(b) plus, Superannuation contributions as required by law on Base Salary

## 2.2 Annualized Salary

At a minimum the following has been accounted for in the base salary referred to in clause

- 33 hours per week at the applicable permanent hourly rate for Level 4 under the Restaurant Industry Award 2020.
- 5 hours per week at 1.15 times the base rate
- 10 hours per week at 1.5 times the base rate
- 2 hours per week at 2 times the base rate and
- 50 hours (5 x 10-hour public holiday shifts) per annum at applicable public holiday rates. This means that you are expected to work on public holidays if required.
- Laundry for uniform
- In determining whether additional hours are reasonable or unreasonable, the following is agreed upon between both parties after considering:
    - any risk to employee health and safety
    - the employee's personal circumstances, including family responsibilities.
    - the needs of the workplace or enterprise
    - whether the employee is entitled to receive overtime payments, penalty rates or other compensation for (or a level of remuneration that reflects an expectation of) working additional hours.
    - any notice given by the employer to work the additional hours.
    - any notice given by the employee of their intention to refuse to work the additional hours.
    - the usual patterns of work in the industry.
    - the nature of the employee's role and the employee's level of responsibility
    - whether the additional hours are in accordance with averaging provisions included in an award or agreement that is applicable to the employee, or an averaging arrangement agreed to by an employer and an award/agreement-free employee.
    - any other relevant matter.

Your shifts will be **Tuesday to Friday 3pm to 9pm and Saturday to Sunday 11.30am to 9 pm** including a **30 min** break not to be taken during rush time. If required to stay extra to finish tasks, it is already covered in the salary calculation which is above award.

On a quarterly basis this annualized arrangement will be reconciled and adjustments made in the employee's favor where necessary. In signing this Agreement, the employee acknowledges that if the employee repeatedly fails to work the included overtime hours when and as the Employer reasonably requests these to be worked the annualized salary may revert to the base salary of 38 hours per week at the applicable permanent hourly rate for Level 4 under the Restaurant Industry Award 2020 plus any penalties/allowances incurred.

### 2.3 Method of payment

The company will pay base salary and allowances into your nominated bank account(s) fortnightly 2 weeks in arrears.

## 3 EXPENSES

The company will reimburse you in accordance with company policy for expenses you properly incur in the course of your employment.

## 4 COMPANY DEBTS

If you owe money to the company, forfeit the right to monies already paid or you are paid more than you are entitled to be paid, the company may withhold (to the extent permissible by industrial laws) the amount forfeited, or the amount of the debt or overpayment, from any amounts otherwise payable to you, including salary or reimbursement of expenses.

## 5 LEAVE and Mechanisms

### 5.1 Entitlement

You will be entitled to paid and unpaid leave in accordance with the Fair Work Act 2009 (Cth). A summary of these entitlements is set out below. You will also be entitled to paid public holidays under the Fair Work Act and Long Service Leave under the applicable legislation in your State or territory.

### 5.2 leave

You will be entitled to annual leave that accumulates continuously based on the number of ordinary hours you work.

Annual leave continues to accumulate when an employee is on:

- paid leave such as paid annual leave and paid sick/carer's leave.
- long service leave
- unpaid leave that counts towards annual leave accrual, such as community service leave (including jury service)
- a stand down under section 524 of the Fair Work Act, an applicable enterprise agreement or the employee's contract of employment.

Annual leave will not accumulate in some circumstances, for example:

- on unpaid leave
- if an employee is taking unpaid leave from their employer while being paid by the Paid Parental Leave Scheme
- for a period of annual leave that has been cashed out.

When can annual leave be taken?

- Annual leave can be taken as soon as it is accumulated. It also does not have to be taken each year. There is no maximum or minimum period of annual leave that can be taken.
- It is up to each employer and employee to agree on when and for how long annual leave can be taken. The employer must not unreasonably refuse an employee's request to take annual leave.
- Annual leave to be taken during business closure during low season

For example, if an employee is taking a week of annual leave, and a public holiday falls within that week, the public holiday will not be counted as annual leave and their annual leave balance won't be reduced for that day unless it is during business annual closure in low season as calculated above.

What payments are required when annual leave is taken?

Under the NES, annual leave is paid at the employee's base pay rates for all ordinary hours worked. Ordinary hours under the NES can't exceed 38 hours in a week. The base rate does not include:

- overtime rates
- penalties
- allowances
- bonuses.

Awards and registered agreements can set out:

a different method of payment for annual leave, for example, a rate of pay that is higher than the base rate of pay if paid according to extra added penalties and overtime, it means that it includes the public holidays during the low season closure period Monday prior to Christmas until end of second week of January where Annual leave will be taken. That annual leave loading is already calculated within the final salary. On termination of employment, an employer must pay an employee for any period of untaken annual leave. The payment for the untaken leave must be the Same as what the employee would have been paid if they took the leave.

Rules for taking annual leave.

An employer and an award and agreement-free employee agree on when and how annual leave is taken. Award and agreement-free employees agree that include:

- taking annual leave in advance if agreed by Employer.
- taking annual leave within a fixed period of time after it is accumulated

providing a specified period of notice before taking annual leave generally it is business closure during third week of December to Mid January.

- cashing out annual leave If agreed by employer upon request of employee
- Annual leave in advance If agreed by employer upon request of employee

The employer allows an employee to take annual leave in advance when their employer agrees in writing.

If an employee takes leave in advance and their employment ends before they've accumulated it all back, the employer will deduct the amount still owing from their final pay.

**Direction to take annual leave**

The employer and the employee agreed that the employee to take Annual leave during business shut down. During Christmas and Easter.

A requirement to take annual leave may be reasonable if, for example:

the employee has an excessive annual leave balance.

the business is being temporarily shut down for a period (such as between Christmas and New Year or Easter).

In assessing reasonableness, the following factors are relevant:

- the needs of the employee and the business
- any agreed arrangement with the employee
- custom and practice of the business
- timing of the direction or requirement to take leave
- the length of the period of notice given.
- Excessive annual leave

Generally, an annual leave balance is considered ‘excessive’ if an employee has more than:

8 weeks of annual leave,

Can annual leave be cashed out?

Award and agreement-free employees may agree with their employer to cash out annual leave at any time. The Employer will assess and take a decision reasonably.

However, whether or not an employee is award and agreement-free, the following applies:

the employee must retain at least 4 weeks annual leave.

the payment for the cashed-out leave must be at least the amount that the employee would have been paid if they took the leave.

Annual leave does not accumulate for a period of annual leave that has been cashed out.

An award or registered agreement may also limit the amount of annual leave an employee can cash out or the timeframe in which it can be cashed out. For example, in most awards, the maximum amount of accrued annual leave that may be cashed out in any 12 month period is 2 weeks.

It is unlawful for an employer to force (or try to force) an employee to make (or not make) an agreement to cash out annual leave. For more information, please see our Protections at work fact sheet.

**Community service leave**

Community service leave forms part of the National Employment Standards (NES). The NES applies to all employees covered by the national workplace relations system, regardless of any award, agreement, or contract.

The NES entitles employees to be absent from work to engage in certain community service activities such as:

- a voluntary emergency management activity
- jury duty, including attendance for jury selection.
- Community service leave

**What is a voluntary emergency management activity?**

An employee engages in a voluntary emergency management activity only if they:

- engage in an activity that involves dealing with an emergency or natural disaster.
- engage in the activity on a voluntary basis.

were either requested to engage in an activity, or it would be reasonable to expect that such a request would have been made if circumstances had permitted.

are a member of, or have a member-like association with, a recognized emergency management body.

What is a recognized emergency management body?

A recognized emergency management body is:

a body that has a role or function under a plan that is for coping with emergencies and/or disasters (prepared by the Commonwealth, a state, or a territory)

- a fire-fighting, civil defense or rescue body
- any other body which substantially involves responding to an emergency or natural disaster.

This would include bodies such as the State Emergency Service (SES), Country Fire Authority (CFA) or the RSPCA (in respect of animal rescue).

How much leave can an employee take?

There is no set limit on the amount of leave an employee is entitled to. They can be absent from their employment:

for the time that they are engaged in the activity, including reasonable travelling time associated with the activity, and reasonable rest time immediately following the activity

if the absence is reasonable in all the circumstances (jury duty is taken to always be reasonable).

notice/evidence requirements?

For an employee to be covered by the community service leave provisions, they must give their employer:

- notice of the absence as soon as practicable
- the period or expected period of absence.
- evidence that they are entitled to leave, if requested by the employer.

Is community service leave paid leave?

Community service leave under the NES is unpaid, except for jury duty. Employees (except casuals) are entitled to make-up pay for the first 10 days they are absent for jury duty.

Make-up pay is the difference between jury duty pay (excluding expense-related allowances) and the employee's base pay rate for the ordinary hours they would have worked.

If requested by the employer, an employee must show:

- they have taken all necessary steps to obtain jury duty pay
- the total amount of jury duty pay that has been paid or will be payable to the employee for the period.
- If the employee is unable to provide this evidence, they won't be entitled to make-up pay

Employees who are experiencing family and domestic violence can take this leave to deal with the impacts of family and domestic violence where it is not practical to do so outside their work hours. This might include:

- making arrangements for their own or a family member's safety (including relocation)
- attending court or accessing police services
- attending counselling, or appointments with medical, financial, or legal professionals.

Employees can access the full amount of leave from the day they start work. The leave can be taken as single or multiple days, or as part days by agreement. An employee's leave balance renews each year on their work anniversary and doesn't accumulate from year to year if it isn't used.

What is family and domestic violence?

Family and domestic violence, for the purposes of the Fair Work Act, means violent, threatening or other abusive behavior that seeks to coerce or control the employee and causes them harm or fear.

It can include behavior by an employee's close relative. For the paid leave entitlement, it also includes behavior by a current or former intimate partner, or a member of the employee's household.

Family and domestic violence can be present in many forms, and not all forms are visible. Violence can be physical, sexual, emotional, psychological, social, cultural, spiritual, or financial. It can also be facilitated through technology. For more information, visit 1800RESPECT.

**How is the leave paid?**

For full-time or part-time employees with a paid entitlement, family and domestic violence leave must be paid at the employee's full rate of pay for the hours they would have worked had they not taken leave.

The employee's full pay rate is their base rate plus any loadings, allowances, overtime and penalty rates, bonuses, incentive payments or other separately identifiable amounts.

**What are the notice and evidence requirements?**

Employees must let their employer know as soon as possible if they need to take family and domestic violence leave. Sometimes this will be after the leave has started.

An employer can ask for evidence to show that the employee needs to do something to deal with family and domestic violence and it's not practical to do it outside their work hours. Types of evidence an employee can provide include:

- a statutory declaration
- family violence support service documents
- documents issued by a police service, or
- documents issued by a court.

## 5.3 Sick leave

can be used when an employee is ill or injured.

An employee may have to take time off to care for an immediate family or household member who is sick or injured or help during a family emergency. This is known as carer's leave but it comes out of the employee's personal leave balance.

Under the NES employees get:

10 days each year for full-time employees

An employee's entitlement to paid sick and carer's leave accumulates progressively during a year of service, based on their ordinary hours of work. The entitlement to 10 days of sick and carer's leave can be calculated as 1/26th of an employee's ordinary hours of work in a year.

Sick and carer's leave accumulates from year to year.

Sick and carer’s leave continues to accrue when an employee takes it or is on paid annual leave. Sick and carer's leave will not accrue on unpaid leave unless it is community service leave, or it is provided for in an award or agreement.

When can paid sick and carer’s leave be taken?

An employee can take sick and carer’s leave:

- if they are unfit for work because of their own personal illness or injury (including pregnancy-related illness), or
- to provide care or support to a member of their immediate family or household, because of a personal illness, injury or unexpected emergency affecting the member. A member of the employee’s immediate family means their:
    - spouse or former spouse.
    - de facto partner or former de facto partner
    - child
    - parent
    - grandparent
    - grandchild
    - sibling, or
    - child, parent, grandparent, grandchild or sibling of the employee’s spouse or de facto partner (or former spouse or de facto partner).

What payments are required when sick and carer’s leave is taken?

When paid sick and carer’s leave is taken, the minimum requirement is that an employee must be paid at their base rate of pay for the ordinary hours they would have worked during the period. An employee’s ‘base rate of pay’ is the rate of pay payable to an employee for their ordinary hours of work, **but not including any of the following:**

- incentive-based payments and bonuses
- loadings
- monetary allowances
- overtime or penalty rates
- any other separately identifiable amounts.
- Can paid sick and carer’s leave be cashed out?

Employees covered by an award or agreement can cash out paid sick and carer’s leave if all of the following apply:

An award or agreement-free employee is not able to cash out paid sick and carer’s leave.

## Unpaid carer's leave

What are the minimum entitlements to unpaid carer’s leave?

An employee (including a casual employee) is entitled to 2 days of unpaid carer’s leave for each occasion when a member of the employee’s immediate family or household requires care or support because of a personal illness, injury, or an unexpected emergency.

An employee may take unpaid carer's leave for each occasion as a single continuous period of up to 2 days, or any separate periods to which the employee and their employer agree. An employee can't take unpaid carer's leave during a particular period if the employee could instead take paid sick and carer's leave (this does not apply to casuals who have no entitlement to paid sick and carer's leave).

## 5.4 Compassionate leave

What are the minimum entitlements to compassionate leave?

An employee (including a casual employee) is entitled to 2 days of compassionate leave to spend time with a member of their immediate family or household who suffers a life-threatening illness or injury. An employee is also entitled to take compassionate leave:

- after the death of a member of the employee's immediate family or household
- if a child who would have been part of the employee's immediate family or household, is stillborn, or
- if an employee, or the employee's current spouse or de facto partner, has a miscarriage.
- An employee may take compassionate leave for each occasion as:

a single continuous 2-day period, or

2 separate periods of one day each, or

any separate periods to which the employee and their employer agree.

What payments are required when compassionate leave is taken?

If an employee (other than a casual employee) takes a period of compassionate leave, the employer must pay the employee at the employee's base rate of pay for the ordinary hours they would have worked during the period.

As mentioned above, casual employees are not entitled to any paid sick and carer's leave or compassionate leave under the NES. However, casuals are entitled to unpaid carer's leave and compassionate leave.

Are there notice and evidence requirements?

For all periods of sick and carer's leave or compassionate leave, an employee must give their employer notice of the taking of the leave.

The notice must be given to the employer as soon as practicable (which may be at a time after the leave has started), and must advise the employer of the period, or expected period, of the leave.

An employer is entitled to request evidence that would substantiate the reason for leave. A failure to provide notice or, if required, evidence that would satisfy a reasonable person to substantiate the reasons for the leave, means the employee is not entitled to the leave.

## 5.5 Community Service leave

You will be entitled to take unpaid leave to undertake eligible community service activity, such as jury service or voluntary emergency management. Make-up payments (up to 10 days) will be made.

## 5.6 Parental leave

You will be entitled to maternity leave after 12 months' continuous service as follows:

(a) unpaid special maternity leave if you:

(i) are pregnant and have a pregnancy related illness; or

(ii) have been pregnant and the pregnancy ended within 28 weeks of the expected date of birth other than by the birth of a living child;

(b) unpaid maternity leave in respect of the birth or expected birth of a child of yours.

The maximum period of maternity leave (including special maternity leave and ordinary maternity leave) is 52 weeks, less any period of related authorized leave taken by you or your spouse. The company may require you to provide a medical certificate and a statutory declaration regarding any application for maternity leave.

You will be entitled to paternity leave after 12 months' continuous service as follows:

(a) unpaid short paternity leave of up to one week commencing on the day your spouse begins to give birth;

(b) unpaid paternity leave after your spouse has given birth to a living child so that you can be the child's primary care-giver.

The maximum period of paternity leave (including short paternity leave and long paternity leave) is 52 weeks, less any period of related authorized leave taken by you or your spouse. The company may require you to provide a medical certificate and a statutory declaration regarding any application for paternity leave.

You will be entitled to adoption leave after 12 months' continuous service as follows:

(a) unpaid pre-adoption leave of 2 days for the purpose of attending any interviews or examinations required to obtain approval for the adoption, unless the Company directs you to take another form of authorized leave to which you are entitled. Pre-adoption leave may be taken as a single, unbroken period of up to 2 days or as otherwise agreed with the company;

(b) unpaid adoption leave:

(i) short adoption leave of up to 3 weeks taken by you within the 3 weeks starting on the day of placement of a child with you for adoption;

(ii) long adoption leave taken by you after the day of placement of a child with you for adoption so that you can be the child's primary care giver.

The maximum period of adoption leave (including short adoption leave and long adoption leave) is 52 weeks, less any period of related authorised leave taken by you or your spouse. The company may require you to provide a statement by the adoption agency and a statutory declaration regarding any application for adoption leave.

You may request an extension of unpaid parental leave for up to 12 months. You may also request to work a flexible working arrangement until your child reaches school age. Conditions apply to these requests. The Company may refuse such requests on reasonable business grounds.

# 6 CONFIDENTIALITY

## 6.1 Confidential information

In the course of your employment, you will become privy to **confidential information** of the company or its clients, whether in written, computerized or oral form.

## 6.2 Obligations of confidence

You will, both during your employment and for so long as the confidential information remains confidential after the termination of your employment (unless it ceases to be confidential due to your breach of this clause):

(a) not at any time, either directly or indirectly, disclose or communicate to any person any confidential information that may come to your knowledge during or in the course of the employment, unless expressly authorized by the company or required by law or court order;

(b) use your best endeavors to prevent disclosure or publication of the confidential information where that disclosure or publication is not authorized by the company.

(c) if required by law or court order to disclose any confidential information, advise the company of that fact and take all lawful steps to confine disclosure of the confidential information and preserve its confidentiality, including taking steps to allow the company or its agents to do so;

(d) not use or attempt to use confidential information for your own purposes or for any purposes other than for the purposes of the company or in any manner which may injure or cause loss directly or indirectly to the company and/or its business; and

(e) acknowledge and agree that, without prejudice to any other remedy that the company may have, the company will be entitled to injunctive and other equitable relief to prevent or cure any breach or threatened breach of this clause.

# 7 RESTRAINT

## 7.1 Restraint

You will not during the **restraint period** in the **restraint area**, by any means whatsoever directly or indirectly:

(a) attempt in any manner to persuade a **client** to cease dealing with or to reduce the dealings which that client has customarily had or contemplated having with the company;

(b) attempt in any manner to persuade a **supplier** to cease dealing with or to reduce the dealings that the supplier has customarily had or contemplated having with the company;

(c) attempt in any manner to persuade any employee or contractor of the company with whose skills and abilities you have become familiar in the course of your employment to cease providing services to the company and/or to provide services to you or another person;

(d) carry on, advise, provide services to or be engaged, concerned or interested in or associated with or otherwise involved in any business activity that is competitive with any business carried on by the company.

## 7.2 Interpretation

Each of the covenants contained in this clause resulting from each restraint period and each restraint area constitutes and is to be construed and will have

effect as a separate, distinct, severable and independent provision from the other covenants (but cumulative in overall effect) and clause 11.3 will apply.

## 7.3 Acknowledgment

You acknowledge and agree that, without prejudice to any other remedy that the company may have, the company will be entitled to injunctive and other equitable relief to prevent or cure any breach or threatened breach of this clause.

You acknowledge that your employment with Phoenix Food and Beverageis not a continuation of any previous employment.

# 8 INTELLECTUAL PROPERTY

## 8.1 Acknowledgments

You acknowledge and agree that:

(a) all intellectual and industrial property rights in **confidential information** and any modifications and enhancements to confidential information are owned by the company;

(b) any **inventions** or **works** created during and in the course of the employment and the entire copyright throughout the world in all works are owned by the company;

(c) the company owns all inventions and works absolutely and without further payment by the company to you and to the extent necessary, you irrevocably assign to the company all your present and future rights, title and interests in and to all inventions and works;

(d) you must immediately disclose to the company (and to no other person) all the details of any inventions or works created by you during your employment.

**8.2 Consent**

You:

(a) consent to the works being changed, copied, edited, added to, taken from, adapted and or translated in any manner or context by the company, and any person authorized by the company to do so, for any purpose related to the company's business, notwithstanding that such conduct may amount to derogatory treatment of the works within the meaning of the *Copyright Act* 1968; and

(b) acknowledge that the consent in clause 8.2(a) above is given genuinely and is not given because any person:

(i) applied duress to you (or your representative) to give that consent; or

(ii) made a false and misleading statement to you in relation to the giving of that consent.

**8.3 General**

You must, both during your employment and thereafter:

(a) do all such acts and things as the company may request reasonably to secure to the company ownership or registration rights in the inventions or works, and you hereby grant to the company the right to use your name to obtain any protection of the inventions or works; and

(b) not engage in any conduct that may damage the company's intellectual property or industrial rights.

(b) You will not have any association or interest outside the company that is incompatible and/or inconsistent with the company's interests.

# 10 TERMINATION OF EMPLOYMENT

## 10.1 Termination by the company

Subject to clause 10.3, the company may terminate the employment by giving you one month's notice in writing.

## 10.2 Resignation

If you resign, you must give one month's notice in writing. If you decline to serve part or all of that notice period without agreement of the company, you will forfeit your right to be paid for that period of notice which you refused to serve (and clause 4 will apply).

## 10.3 Summary termination

The company may terminate your employment immediately by giving written notice to you and without being required to provide any compensation or payment in lieu of notice if you:

(a) engage in serious or gross misconduct;

(b) breach a fundamental condition and/or commit a fundamental breach of the conditions of your employment;

(c) commit an act of fraud or dishonesty;

(d) engage in any conduct which, in the reasonable opinion of the company, might tend to injure the reputation or business of the company;

(e) fail or refuse to comply with any lawful direction given to you by the company through its authorized representative.

(f) fail to keep the food cost below %35 for 3 consecutive months

## 10.4 During the notice period

If either the company or you give notice of termination under this agreement, the company may:

(a) pay you an amount of base salary in lieu of part or all of that period not served by you; or

(b) require you to serve part or all of that period without attending work and/or performing duties.

## 10.5 Acts following termination

Upon the termination of your employment you must immediately repay all outstanding debts and loans to the company and return to the company any of the following items in your possession:-

(a) any document, whether in computerized form or otherwise, relating to any matter within the scope of the business of the company, or to confidential information or any other aspect of your employment;

(b) all keys and passes belonging to the company;

(c) all software and associated materials belonging to or licensed to the company; and

(d) all other property belonging to the company,

and you will provide the company with a letter certifying that all such items have been returned.

# 11 GENERAL PROVISIONS

## 11.1 Entire agreement

This letter constitutes the entire agreement between you and the company regarding the matters set out in it and supersedes any prior representations, understandings or arrangements between the parties, whether oral or in writing.

## 11.2 Variation

If your position, job location or remuneration package change during your employment, the other provisions of this agreement will continue to apply to your employment unless varied by mutual agreement in writing.

## 11.3 Severance

If any clause or any part of any clause in this agreement is in any way unenforceable, invalid or illegal, it is to be read down so as to be enforceable, valid and legal. If this is not possible, the clause (or where possible, the offending part) is to be severed without affecting the enforceability, validity or legality of the remaining clauses (or parts of those clauses) of this agreement, which will continue in full force and effect.

## 11.4 Governing law and jurisdiction

(a) The laws applicable in Victoria govern your employment and this agreement.

(b) The parties submit to the non-exclusive jurisdiction of the courts of Victoria and any courts competent to hear appeals from those courts.

# 12 DEFINITIONS

In this agreement:

**client** means any person who is or was a client of the company with whom in the course of the last 12 months of your employment you have dealings;

**the company** means Phoenix Food and Beverage Pty LTD operating as Tarator

**company policies** means the policies of the company relating to your employment;

**confidential information** includes information about the following matters that is confidential to the company:

(a) any client;

(b) the number, nature or mix of products or services provided by the company;

(c) any person who the company or you have approached or canvassed during the employment as a potential client, including their names, addresses, requirements and preferences concerning the products or services produced or that may reasonably be provided by or through the company;

(d) marketing or business plans or strategies;

(e) techniques, procedures or methods devised by the company or required to be used in the operation of its business, including the training of its personnel;

**industrial laws** means any applicable industrial award, enterprise agreement or industrial legislation;

**inventions** means all inventions, discoveries and novel designs;

**restraint period** means the following period commencing immediately after termination of your employment:

(a) 12 months, or if that is unreasonable

(b) 9 months, or if that is unreasonable

(c) 6 months, or if that is unreasonable

(d) 3 months.

**restraint area** means the following geographical region:

(a) Australia,

(b) Victoria, NSW, ACT, Tasmania.

**supplier** means any person who supplies services to the company with whom in the course of the last 12 months of your employment both the company and you have dealings;

**works** means all works and other subject matter in which copyright exists;

Phoenix Food and Beverage Pty LTD means Tarator and Bolognese espresso bar and Europa Pizza and Acai do Brazil located at 530 little collins street and 75 Dorcas Street South Melbourne

**Date:** _____

**SIGNED** for and on behalf of )

Phoenix Food and Beverage Pty LTD )

_____ )
Name of signatory

I acknowledge and declare that I have read and fully understand the terms and conditions contained in this agreement and accept that I will observe them fully during my employment:

_____
**Signature of employee**

……..
Name of employee

**Date:** _____

_____
**Signature of witness**

……..
Name of witness

**Date:** _____